

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.

-----X
EFDGYNE MICHEL,**Summons**

Plaintiff,

against

Plaintiff designates KINGS
County as the place of trial.THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. SAMUEL CASSEUS,
P.O. GRACE MCCAFFREY, SGT. JULIANA DIXSON,
SGT. HANNA, SGT. MALILLO, ARRESTING OFFICER
JOHN DOE 1, ARRESTING OFFICER JOHN DOE 2
and ARRESTING OFFICER JOHN DOE 3,Basis of Venue:
C. P. L.R. 505(a)Defendants.
-----X**To the above named Defendant(s)**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, of if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney(s) within twenty days after the services of this summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 4, 2024*Mark J. Linder, Esq.*Harmon, Linder & Rogowsky
Attorneys for Plaintiff(s)
3 Park Avenue, Suite 2300
New York, NY 10016The City of New York
100 Church Street
New York, NY 10006Sgt. Juliana Dixon
1 Police Plaza
New York, NY 10033The New York City Police Department
1 Police Plaza
New York, NY 10033Sgt. Hanna
1 Police Plaza
New York, NY 10033P.O. Samuel Casseus
1 Police Plaza
New York, NY 10033Sgt. Malillo
1 Police Plaza
New York, NY 10033P.O. Grace McCaffrey
1 Police Plaza
New York, NY 10033

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**-----X
EFDGYNE MICHEL,**Plaintiff,****VERIFIED
COMPLAINT
Index No.:****-against-**

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. SAMUEL CASSEUS,
P.O. GRACE MCCAFFREY, SGT. JULIANA DIXSON,
SGT. HANNA, SGT. MALILLO, ARRESTING OFFICER
JOHN DOE 1, ARRESTING OFFICER JOHN DOE 2
and ARRESTING OFFICER JOHN DOE 3,

Defendants.
-----X

Plaintiff complaining of the Defendants herein by her attorneys, HARMON,
LINDER & ROGOWSKY respectfully sets forth and alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF**

1. That at the time of the commencement of this action, Plaintiff was a resident of the County of Kings, City and State of New York.
2. That at all times herein mentioned, the Defendant THE CITY OF NEW YORK was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. That at all times herein mentioned, Plaintiff duly served a Notice of Claim and Intention to Sue thereupon on the Defendant THE CITY OF NEW YORK on October 30, 2023, within the time prescribed by law.

4. That Defendant THE CITY OF NEW YORK has neglected and refused to make an adjustment in payment thereof for more than thirty (30) days after service of said Notice of Claim and Intention to Sue.
5. That the Plaintiff has duly complied with all statutes and laws applicable to the Defendant THE CITY OF NEW YORK precedent to the making of this claim and bringing this action.
6. That at all relevant times, the NEW YORK CITY POLICE DEPARTMENT is a department and/or agency of Defendant THE CITY OF NEW YORK.
7. Upon information and belief, P.O. SAMUEL CASSEUS was and still is an employee, servant and or agent of the Defendant THE CITY OF NEW YORK and acting as an individual and in his capacity as the employee, agent and or servant of the Defendants THE NEW YORK CITY POLICE DEPARTMENT and/or THE CITY OF NEW YORK.
8. That at all times herein mentioned, Defendant P.O. SAMUEL CASSEUS, was acting within the course and scope of his authority as an employee agent and or servant of the Defendants THE NEW YORK CITY POLICE DEPARTMENT and/or THE CITY OF NEW YORK.
9. That on September 9, 2023, at approximately 1:00 p.m. upon the lands and premises located at 5221 Flatlands Avenue, Apt 1C, in the County of Kings, City and State of New York the Defendant P.O. SAMUEL CASSEUS, without notice justification and provocation, brutally, recklessly, wantonly, negligently, maliciously, forcefully and willfully sexually assaulted, assaulted and battered the Plaintiff.
10. Upon information and belief, P.O. SAMUEL CASSEUS' firearm was in the same

room where the aforesaid sexual assault, assault and battery of the Plaintiff occurred.

11. That as a direct consequence and result of the acts of the Defendant THE CITY OF NEW YORK and by its servant, agent and or employee P.O. SAMUEL CASSEUS, herein above complained of, the Plaintiff was brutally battered, sexually assaulted and assaulted and thereby caused to sustain serious and severe injuries including fright and shock.
12. That as a result of the foregoing, the Plaintiff was caused to and did sustain severe and serious injuries and was required to seek and obtain medical care and attention in an effort to cure and alleviate same and, upon information and belief will be compelled to do so in the future.
13. That this occurrence and the injuries sustained by the Plaintiff herein were caused by the negligence and recklessness of the Defendants herein.
14. On said date, the Plaintiff remained unlawfully and falsely imprisoned by the Defendant P.O. SAMUEL CASSEUS.
15. That the Defendant P.O. SAMUEL CASSEUS did intentionally, maliciously, wantonly and recklessly cause Plaintiff to fear immediate harm from their actions.
16. That the Defendant P.O. SAMUEL CASSEUS' aggressive and offensive conduct was done deliberately to harm the Plaintiff.
17. That as a result of the aforesaid conduct, Plaintiff suffered injuries, including but not limited to lacerations, bruises, and other physical injuries causing pain and suffering.
18. That as a further result of Defendants conduct, Plaintiff suffered fright, shock,

humiliation, outrage and other mental injuries.

19. That because the Defendants conduct was malicious, aggressive, wanton, reckless and outrageous, punitive damages should be assessed against them.
20. Defendants disregarded their duty to protect Plaintiff, failed to prevent Plaintiff from being falsely imprisoned, sexually assaulted, assaulted and battered and negligently, carelessly and recklessly performed and executed their duties.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF

21. Plaintiff repeats and re-alleges each and every allegation contained in paragraphs "1" through "20", inclusive with the same force and effect as though the same were more fully set forth at length herein.
22. The occurrence was caused with willful and intentional acts of the Defendant P.O. SAMUEL CASSEUS.
23. Defendant THE CITY OF NEW YORK knew or should have known that prior to, at and subsequent to the time when Defendants employed and engaged Defendant P.O. SAMUEL CASSEUS, he was a person of sexual deviances, violence, violent propensities, incompetence and indifference; had previously caused other individuals to be falsely imprisoned, assaulted, battered and/or sexually assaulted without just cause or provocation and was known by general reputation to be incompetent and indifferent.
24. Defendant THE CITY OF NEW YORK failed and neglected to make any, or appropriate, inquiries with respect to the competence and temperament and character of Defendant P.O. SAMUEL CASSEUS, prior to, at or subsequent to the time Defendant THE CITY OF NEW YORK employed him.

25. By reason of the above, Defendant THE CITY OF NEW YORK was negligent in hiring and retaining Defendant P.O. SAMUEL CASSEUS.
26. That the Defendant, THE CITY OF NEW YORK should have known that its failure in such regards would cause harm.
27. That this occurrence and the injuries sustained by the Plaintiff herein were caused by the negligence of the Defendants herein.
28. As a result of the foregoing, Plaintiff suffered serious, severe personal and emotional injuries, medical expenses and out-of-pocket expenses all to her damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF

29. This Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs of this complaint numbered "1" through "28", inclusive with the same force and effect as though the same were more fully set forth at length herein.
30. Defendants disregarded their duty to protect Plaintiff and intentionally and unlawfully imprisoned, battered, assaulted, and/or sexually assaulted the Plaintiff.
31. As a result of the foregoing, Plaintiff suffered serious, severe personal and emotional injuries, medical expenses and out-of-pocket expenses all to her damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF

32. This Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs of this complaint numbered "1" through "31", inclusive with the same force and effect as though the same were more fully set forth at length herein.

33. At the above-described time and place, Plaintiff was unlawfully and violently assaulted, battered, sexually assaulted by the Defendant P.O. SAMUEL CASSEUS.
34. Defendant THE CITY OF NEW YORK disregarded its duty to protect Plaintiff, failed to prevent P.O. SAMUEL CASSEUS from threatening, assaulting, battering, sexually assaulting, attacking and inflicting serious injuries upon Plaintiff and took no actions to stop these unlawful acts.
35. Defendant THE CITY OF NEW YORK was negligent in failing to provide adequate security so as to protect Plaintiff, who was a lawful citizen, and carelessly failed to take all and reasonable necessary precautions to prevent this occurrence.
36. As a result of the foregoing, Plaintiff suffered serious, severe personal and emotional injuries, medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF

37. This Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs of this complaint numbered "1" through "36", inclusive with the same force and effect as though the same were more fully set forth at length herein.
38. Defendant P.O. SAMUEL CASSEUS disregarded his duty to protect Plaintiff and intentionally threatened, assaulted, sexually assaulted, battered and attacked Plaintiff.
39. Defendant P.O. SAMUEL CASSEUS carelessly, negligently and recklessly inflicted injuries upon Plaintiff and failed to exercise the necessary amount of care and caution which a reasonable person would have exercised to prevent this foreseeable occurrence.

40. Plaintiff's injuries were due to the careless, negligent and reckless conduct by the Defendants without any negligence on the part of Plaintiff contributing thereto.
41. As a result of the foregoing, Plaintiff suffered serious, severe personal and emotional injuries, medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF

42. This Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs of this complaint numbered "1" through "41", inclusive with the same force and effect as though the same were more fully set forth at length herein.
43. Upon information and belief, P.O. GRACE MCCAFFREY was and still is an employee, servant and or agent of the Defendant THE CITY OF NEW YORK and acting as an individual and in her capacity as the employee, agent and or servant of the Defendants THE NEW YORK CITY POLICE DEPARTMENT and/or THE CITY OF NEW YORK.
44. That at all times herein mentioned, Defendant P.O. GRACE MCCAFFREY, was acting within the course and scope of her authority as an employee agent and or servant of the Defendants THE NEW YORK CITY POLICE DEPARTMENT and/or THE CITY OF NEW YORK.
45. Upon information and belief, SGT. JULIANA DIXSON was and still is an employee, servant and or agent of the Defendant THE CITY OF NEW YORK and acting as an individual and in his capacity as the employee, agent and or servant of the Defendants THE NEW YORK CITY POLICE DEPARTMENT and/or THE CITY OF NEW YORK.

46. That at all times herein mentioned, Defendant SGT. JULIANA DIXSON, was acting within the course and scope of his authority as an employee agent and or servant of the Defendants THE NEW YORK CITY POLICE DEPARTMENT and/or THE CITY OF NEW YORK.
47. Upon information and belief, SGT. HANNA was and still is an employee, servant and or agent of the Defendant THE CITY OF NEW YORK and acting as an individual and in his capacity as the employee, agent and or servant of the Defendants THE NEW YORK CITY POLICE DEPARTMENT and/or THE CITY OF NEW YORK.
48. That at all times herein mentioned, Defendant SGT. HANNA, was acting within the course and scope of his authority as an employee agent and or servant of the Defendants THE NEW YORK CITY POLICE DEPARTMENT and/or THE CITY OF NEW YORK.
49. Upon information and belief, SGT. MALILLO was and still is an employee, servant and or agent of the Defendant THE CITY OF NEW YORK and acting as an individual and in his capacity as the employee, agent and or servant of the Defendants THE NEW YORK CITY POLICE DEPARTMENT and/or THE CITY OF NEW YORK.
50. That at all times herein mentioned, Defendant SGT. MALILLO, was acting within the course and scope of his authority as an employee agent and or servant of the Defendants THE NEW YORK CITY POLICE DEPARTMENT and/or THE CITY OF NEW YORK.
51. Upon information and belief, P.O. SAMUEL CASSEUS was and still is an

employee, servant and or agent of the Defendant THE CITY OF NEW YORK and acting as an individual and in his capacity as the employee, agent and or servant of the Defendants THE NEW YORK CITY POLICE DEPARTMENT and/or THE CITY OF NEW YORK.

52. That at all times herein mentioned, Defendant P.O. SAMUEL CASSEUS, was acting within the course and scope of his authority as an employee agent and or servant of the Defendants THE NEW YORK CITY POLICE DEPARTMENT and/or THE CITY OF NEW YORK.
53. Upon information and belief, Defendant ARRESTING OFFICER JOHN DOE 1 is a fictitious person whose real identity will be learned and is an individual residing in the state of New York.
54. Upon information and belief, ARRESTING OFFICER JOHN DOE 1 was and still is an employee, servant and or agent of the Defendant THE CITY OF NEW YORK and acting as an individual and in his capacity as the employee, agent and or servant of the Defendant THE CITY OF NEW YORK.
55. That at all times herein mentioned, Defendant ARRESTING OFFICER JOHN DOE 1, was acting within the course and scope of his authority as an employee agent and or servant of the Defendant THE CITY OF NEW YORK.
56. Upon information and belief, Defendant ARRESTING OFFICER JOHN DOE 2 is a fictitious person whose real identity will be learned and is an individual residing in the state of New York.
57. Upon information and belief, ARRESTING OFFICER JOHN DOE 2 was and still is an employee, servant and or agent of the Defendant THE CITY OF NEW YORK

and acting as an individual and in his capacity as the employee, agent and or servant of the Defendant THE CITY OF NEW YORK.

58. That at all times herein mentioned, Defendant ARRESTING OFFICER JOHN DOE 2, was acting within the course and scope of his authority as an employee agent and or servant of the Defendant THE CITY OF NEW YORK.
59. Upon information and belief, Defendant ARRESTING OFFICER JOHN DOE 3 is a fictitious person whose real identity will be learned and is an individual residing in the state of New York.
60. Upon information and belief, ARRESTING OFFICER JOHN DOE 3 was and still is an employee, servant and or agent of the Defendant THE CITY OF NEW YORK and acting as an individual and in his capacity as the employee, agent and or servant of the Defendant THE CITY OF NEW YORK.
61. That at all times herein mentioned, Defendant ARRESTING OFFICER JOHN DOE 3, was acting within the course and scope of his authority as an employee agent and or servant of the Defendant THE CITY OF NEW YORK.
62. That at all times herein mentioned, the hiring of employees agents and or servants for the Defendant, THE CITY OF NEW YORK, was under its control.
63. That on September 9, 2023, P.O. SAMUEL CASSEUS made intentional false, misleading and inaccurate written and/or verbal statements that Plaintiff was involved in a robbery and assault.
64. That on September 9, 2023, at approximately 5:10 p.m., the Plaintiff was apprehended, restrained, assaulted, arrested, handcuffed and subjected to unjustified, unnecessary and unwarranted force, confined, falsely imprisoned by

being handcuffed and held for approximately two days and subjected to in-human treatment and cruel and unusual punishment in violation of Plaintiff's civil rights pursuant to 42 USC Section 1983.

65. The Defendants P.O. SAMUEL CASSEUS, P.O. GRACE MCCAFFREY, SGT. JULIANA DIXSON, SGT. HANNA, SGT. MALILLO, ARRESTING OFFICER JOHN DOE 1, ARRESTING OFFICER JOHN DOE 2 and ARRESTING OFFICER JOHN DOE 3 (collectively, "Individual Defendants"), THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK and its agents, servants and/or employees violated the Civil Rights and constitutional guarantees and Bill of Rights of the Plaintiff under color of authority including but not limited to the deprivation of life and liberties the right to security of person and freedom from assault and battery.
66. That as a direct consequence and result of the acts of Defendant THE CITY OF NEW YORK by its servants, agents and or employees and the Individual Defendants, herein above complained of, the Plaintiff was deprived of her liberty.
67. As a result of the foregoing, Plaintiff suffered serious, severe personal and emotional injuries, medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.
68. That at all times herein mentioned, the Defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, by their employees namely police officers and the Individual Defendants, without cause, justification, provocation and notice, brutally, and without provocation, recklessly, wantonly, negligently, maliciously, did arrest the Plaintiff and caused her to be arrested and

incarcerated for a substantial period of time.

69. At no time did the Individual Defendants inform Plaintiff that she had the right to remain silent, the right to an attorney or provide her with any other Miranda warnings. None of the Individual Defendants explained what Plaintiff was being charged with.
70. That said Plaintiff has been subjected to the deprivation by Defendants, and or its agents, employees and or servants, under the custom and usages in the County of New York, City and State of New York, of rights, privileges and immunities secured to her by the Constitution of the State of New York and particularly, with respect to the said Plaintiff's rights under Article I of the Bill of Rights to the said New York Constitution; to her rights to security of person and freedom from arrest, guaranteed by said Bill of Rights to the Constitution, to her right to be informed to the true nature and cause of accusation against her guaranteed by said Bill of Rights to the said Constitution as well as her right to Equal Protection guaranteed under said Bill of Rights to the Constitution, moreover the aforesaid violated rights are further provided for in the Civil Rights Law of the State of New York.
71. That as a direct consequence and result of the acts of the Defendants by their servants, agents and or employees, herein above complained of, the Plaintiff was deprived of her liberty on September 9, 2023.
72. That as a result of the foregoing, the Plaintiff seeks damages as provided in the Constitution of the State of New York, and the United States of America and the Bill of Rights of the United States of America and the State of New York.

73. Because of the outrageous nature of the Defendants' conduct and the resulting stigmatization of the Plaintiff as a criminal, punitive damages should be assessed against the Defendants.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF

74. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "73" as if the same were more fully herein after set forth at length.

75. That all Defendants did intentionally, maliciously, wantonly and recklessly cause Plaintiff to fear immediate harm from their actions and words.
76. That all Defendants did intentionally, maliciously, wantonly and recklessly deprive Plaintiff of access to medical care for a substantial period of time while she was in custody.
77. That all Defendants did intentionally, maliciously, wantonly and recklessly deprive Plaintiff of access to medication for a substantial period of time while she was in custody.
78. That the Defendants' aggressive and offensive conduct was done deliberately to harm the Plaintiff.
79. That as a result of the aforesaid conduct, Plaintiff suffered physical injuries causing pain and suffering.
80. That as a further result of Defendants conduct, Plaintiff suffered fright, shock, humiliation, outrage and other mental injuries.
81. That because the Defendants' conduct was malicious, aggressive, wanton, reckless and outrageous, punitive damages should be assessed against them.
82. That as a result of the foregoing, the Plaintiff seeks damages with costs and interest.

AS AND FOR AN EIGHTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF

83. Plaintiff repeats and realleges each and every allegation contained in paragraphs “1” through “82” as if the same were more fully herein after set forth at length.
84. The Plaintiff was caused physical, mental and/or emotional injuries due to the negligence of the Defendants THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT in their retention of Defendant P.O. SAMUEL CASSEUS.
85. Defendants THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT and its agents, servants, and/or employees had reason to believe and/or knew or in the exercise of reasonable care should have known that P.O. SAMUEL CASSEUS was a danger to others including the Plaintiff. It is claimed that the Defendants failed to safeguard the Plaintiff and/or take reasonable steps and precautionary measures to provide for the safety of the Plaintiff. The Defendants were negligent in their acts and/or omissions for failure to and or taking inadequate measures in controlling the behavior of their staff including ensuring that the employees were not engaging in dangerous activities.
86. That as a result of the foregoing, the Plaintiff seeks damages, with costs and interest.

AS AND FOR AN NINTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF

87. Plaintiff repeats and realleges each and every allegation contained in paragraphs “1” through “86” as if the same were more fully herein after set forth at length.
88. The Defendants’ acts were a negligent infliction of emotional distress on Plaintiff.

89. That all of the above causes of action fall within one or more of the exceptions set forth in Section 1602 of the CPLR.
90. That by reason of the foregoing, Plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.
91. The damages include serious and personal pain and suffering from injuries, shock, humiliation, fright, and the physical, mental and emotional consequences, thereof, in addition to punitive damages.

AS AND FOR AN TENTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF

92. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "91" as if the same were more fully herein after set forth at length.
93. That the Defendants conduct as earlier described was negligent, careless, willful, and or oppressive in inter alia:
- a. Failing to take proper precautions for the safety and well-being of the Plaintiff;
 - b. That Defendants were negligent in the hiring, screening, training and supervising of its employees and in having or contracting for provision of inadequate and or dangerous security personnel, in particular the police officers set forth in the complaint.
 - c. Failing to adopt appropriate procedures for the protection of suspects;
 - d. Allowing its personnel to use excessive force;

- e. It is further claimed that Defendants were further negligent careless reckless in their acts and or omissions in their failure to properly hire, train supervise, manage, control and discipline their employees.
 - f. Defendants were further negligent reckless and careless in their use upkeep, maintenance, and or management of a system of fretting out, and keeping track of and methodology used for evaluations of police officers, who have dangerous dispositions, and vicious and violent propensities.
 - g. Defendants and their agents, servants and or employees had reason to believe and or knew or in the exercise of reasonable care should have known that their agents servants and or employees including the Individual Defendants were a danger to themselves and to others.
 - h. Defendants failed to properly update, maintain and amend its records regarding problem officers who the Defendants had reason to believe or knew or in the exercise of reasonable care should have known that their agents servants and or employees were a danger to themselves and to others.
 - i. It is further claimed that the Defendants were negligent, careless, and or reckless, in that its plan and strategy for the deployment and allocation of its municipal resources lacked a rational basis, was plainly inadequate and was not properly reviewed in light of its actual operation.
 - j. Negligence at law.
94. That the Defendants, should have known that its failure in such regards would cause harm.

95. That as a result of the foregoing, the Plaintiff seeks damages, with costs and interest.

AS AND FOR AN ELEVENTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF

96. Plaintiff repeats and realleges each and every allegation contained in paragraphs “1” through “95”, as if the same were fully herein after set forth at length.
97. That at all times hereinafter set forth and prior thereto, the Defendants, by its officials, agents, servants and or employees, detainees, restrained and imprisoned the Plaintiff against her will and without any legal justifications.
98. That at all times hereinafter set forth and prior thereto, the Defendants, restrained and imprisoned the Plaintiff against her will and without any legal justifications.
99. That at time of the aforesaid restraint and detention, Defendants knew and or should have known that Plaintiff had not committed any crime.
100. That as a direct result of the Defendants wrongful imprisonment, Plaintiff suffered injuries including but not limited to lacerations, strains, loss of liberty, humiliation and mental distress and other mental and physical injuries.
101. That because of the outrageous nature of the Defendant’s seizure and imprisonment of Plaintiff, punitive damages should be assessed against them.
102. That as a result of the foregoing, the Plaintiff seeks damages, with costs and interest. That as a result of the foregoing, the Plaintiff seeks punitive damages.

AS AND FOR A TWELFTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF

103. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "102", as if the same were fully herein after set forth at length.
104. That at all times herein mentioned, all the Defendants, without cause, justification, provocation and notice did arrest the Plaintiff and caused her to be arrested and incarcerated for a substantial period of time in violation of New York City Administrative Code.
105. The said Plaintiff has been subjected to deprivation by the Defendants, under the custom and usages in the County of the Kings, City and State of New York, and as such have violated those section of the New York City Administrative Code.
106. That as a result of the foregoing, the Plaintiff seeks compensatory damages.
107. That as a result of the foregoing, the Plaintiff seeks attorneys' fees as provided by said New York City Administrative Code.
108. Because of the outrageous nature of Defendant's conduct and the resulting stigmatization of the Plaintiff as a criminal, punitive damages should be assessed against the Defendants for its violation of the New York City Administrative Code.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF

109. This Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs of this complaint numbered "1" through "108", inclusive with the same force and effect as though the same were more fully set forth at length herein.
110. Defendant THE CITY OF NEW YORK has grossly failed to train and adequately supervise its police officers to prevent officers from making false statements to obtain arrest warrants.

111. Defendant THE CITY OF NEW YORK was negligent by failing to implement a policy within THE NEW YORK CITY POLICE DEPARTMENT instructing and preventing officers from making false, misleading and/or inaccurate statements to obtain arrest warrants.
112. Defendant THE CITY OF NEW YORK has grossly failed to train and adequately supervise its police officers to ensure medical care is provided to persons in the custody of THE NEW YORK CITY POLICE DEPARTMENT when requested.
113. Defendant THE CITY OF NEW YORK was negligent by failing to implement a policy within THE NEW YORK CITY POLICE DEPARTMENT instructing a officers to allow persons in their custody access to medical care and prescribed medication as needed.
114. The foregoing acts, omissions and systemic failures are customs and policies of THE CITY OF NEW YORK which caused the Individual Defendants here to falsely and wrongfully arrest the Plaintiff here and deny her access to medical care and medication, under belief the Individual Defendants would suffer no disciplinary actions for their failure to take proper or prudent steps in this matter.

AS AND FOR A FOURTEENTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF

115. This Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs of this complaint numbered "1" through "114", inclusive with the same force and effect as though the same were more fully set forth at length herein.
116. Defendant THE CITY OF NEW YORK was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Individual Defendants, knew or should have known the bad disposition of the Individual

Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by THE CITY OF NEW YORK and that due to their lack of training, these officers should have had adequate supervision so they would not make false statements resulting in Plaintiff's wrongful arrest.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First through Fourteenth Causes of Action in an amount which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction all together.

Yours, etc.

Mark J. Linder, Esq.
HARMON, LINDER & ROGOWSKY
Attorneys for Plaintiff
3 Park Avenue, 23rd floor, Suite 2300
New York, New York 10016
(212) 732-3665

STATE OF NEW YORK)
) ss:
COUNTY OF NEW YORK)

I, the undersigned, am an attorney admitted to practice in the Courts of New York State,
and say that:

I am the attorney of record or of counsel with the attorney(s) of record for plaintiff.

I have read the annexed **SUMMONS AND VERIFIED COMPLAINT** and know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief. As to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge is based upon the following: Interviews and/or discussions with the plaintiff(s) and papers and/or documents in the file.

The reasons I make this affirmation instead of the plaintiff is because said plaintiff resides outside of the county from where your deponent maintains his office for the practice of law.

Dated: New York, New York
December 4, 2024

Mark J. Linder

Mark J. Linder, Esq.

Index No.

Year

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF **KINGS**

EFDGYNE MICHEL,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O.
SAMUEL CASSEUS, P.O. GRACE MCCAFFREY, SGT. JULIANA DIXSON, SGT.
HANNA, SGT. MALILLO, ARRESTING OFFICER JOHN DOE 1, ARRESTING OFFICER
JOHN DOE 2 and ARRESTING OFFICER JOHN DOE 3,

Defendants.

SUMMONS AND VERIFIED COMPLAINT
-----**HARMON, LINDER & ROGOSWKY, ESQS.**

Attorney for Plaintiff(s)

3 Park Avenue, Suite 2300**New York, NY 10016****(212) 732-3665 Phone****(212) 732-1462 Facsimile**

To:

Attorney(s) for Defendant

Service of a copy of the within Summons and Complaint is hereby admitted.

Dated:Attorney(s) for

PLEASE TAKE NOTICE

☐ Notice of Entry that the within is a (certified) true copy of a
entered in the office of the clerk of the within named Court on☐ Notice of Settlement
that an order of which the within is a true copy will be presented for settlement to the
Hon. _____, one of the judges of the within named Court, at _____,
on _____.

Dated:

Yours, etc.

Harmon, Linder & Rogowsky, Esqs.

Attorneys for Plaintiff

3 Park Avenue, Suite 2300

New York, NY 10016

(212) 732-3665